

(This is only applicable to acquisitions under the Simplified Acquisition Threshold. Acquisition using FAR Subpart 13.5 shall follow the special documentation requirements at FAR 13.501.)

USE OF OTHER THAN FULL AND OPEN COMPETITION FOR AN ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD

I. BACKGROUND:

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).
2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

Service Portable Freeze Seal Compressed Air System (PFSCAS) Equipment at Nuclear Regional Maintenance Detachment Point Loma. Air compressor will receive annual maintenance, as recommended by the manufacturer, to ensure usability for emergent freeze sealing jobs performed regularly at NRMD-PL.

Atlas Copco, 13438 Alondra BLVD, Cerritos, CA 90703

POC: James Vida, (562) 237-0270, james.vida@atlascopco.com

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING (select all that apply):

A. ☐ ONLY ONE RESPONSIBLE SOURCE (select all that apply):

1. ☐ **RESTRICTIVE RIGHTS.** The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.

Explain what rights are restricted, why the restrictive rights make the required item or service available from only one source, and why another company could not satisfy the Government's need.

2. ☒ **EXCLUSIVE LICENSING AGREEMENTS.** The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

The equipment being serviced is required in order to support future freeze seal work. This work requires reliable and consistent operation of equipment due to personnel safety and reactor safety. An Atlas Copco qualified maintenance technician & Atlas Copco genuine parts are required to be used on this portable freeze seal equipment because it ensures compatibility w/current parts and quality control of the maintenance being performed, which is critical for proper operation and increasing the operational lifespan of our equipment.

The PFSCAS Equipment is custom built, designed, and manufactured by Atlas Copco. This equipment is required to be maintained by an Atlas Copco qualified maintenance technician w/ Atlas Copco genuine parts to ensure compatibility w/current parts and quality control of the maintenance being performed. No authorized dealers exist in the area that are able to work on the size and specialty of the equipment.

3. ____ OTHER REASONS. *Other reason not identified above. Provide details on mission impact if requirement is not solicited from only one source.*

B. ____ BRAND NAME. Item required must be a brand name product, or feature of a product, particular to one manufacturer. *Discuss why you are precluding consideration of a product manufactured by another company. Describe how the particular brand name, product, or feature is essential to the Government's requirements and why a "brand name or equal" purchase description cannot be used (see FAR 11.104). Describe how market research indicates other companies' similar products or products lacking the particular feature do not meet, or cannot be modified to meet, the agency's needs.*

C. ____ UNUSUAL AND COMPELLING URGENCY. The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

- 1. Date on which the requirement was first identified: 7/17/25**
- 2. Required delivery date/period of performance: 9/1/25 through 8/31/26**
- 3. Explanation of why delivery/commencement of services by the date mentioned above is required:** This is a yearly maintenance contract.
- 4. If appropriate, include any additional pertinent information:**

IV. CERTIFICATIONS/APPROVALS:

A. Technical / Requirements Certification: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.

/s/Joseph Carbone (207) 438-5839 07/17/2025

Signature Name (Printed) / Phone # Date

B. Contracting Officer Approval:

MACLELLAN.VICTORIA.B. [REDACTED] Digitally signed by
[REDACTED] MACLELLAN.VICTORIA.B. [REDACTED]
[REDACTED] Date: 2025.10.22 11:07:25 -04'00'

Signature Name (Printed) / Phone # Date